

TENTATIVE RULING

Case: Hecht v. Wells Fargo Bank et al.
Case No. CV-2025-1781

Hearing Date: February 19, 2026 **Department Eleven** **9:00 a.m.**

Defendant Barrett Daffin Frappier Treder & Weiss, LLP's request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The proffered documents are not relevant to the Court's determination of this motion. (See *People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see also *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendant's unopposed demurrer to complaint is **OVERRULED** in its entirety. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that the legal authority identified by defendant fails to support that defendant may bring this [second] demurrer to plaintiff Eileen Hecht's original complaint after the identical demurrer, filed on November 4, 2025, was previously overruled. (See *County of El Dorado v. Superior Court* (2019) 42 Cal.App.5th 620, 625; citing *Bennett v. Suncloud* (1997) 56 Cal.App.4th 91, 97 & fn. 1 ["...a defendant cannot demur on the same grounds to a previous demurrer that was overruled."]; Minute Order, dated November 12, 2025.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **LVNV Funding LLC v. Vidales**
 Case No. CV-2022-0999

Hearing Date: **February 19, 2026** **Department Eleven** **9:00 a.m.**

Defendant Mark Vidales' motion to: (1) strike unauthorized appearance and filings; (2) recall and quash writ of execution; (3) set aside earnings withholding order; (4) order restitution; and (5) alternatively, vacate void post-judgment orders is **DENIED**. The Court finds that defendant fails to provide any relevant legal authority or argument in support of the relief sought. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].) Nonetheless, the Court finds that the attorneys and law firms representing plaintiff LVNV Funding LLC in this matter were authorized to act on plaintiff's behalf.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.